

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Griffin Sherbert	Team: Squad #08	CCRB Case #: 201709421	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/11/2017 7:23 PM	Location of Incident: East 5th Street and Avenue C	18 Mo. SOL 5/11/2019	Precinct: 09		
Date/Time CV Reported Tue, 11/14/2017 9:45 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/17/2017 1:21 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Giery	24648	952781	PSA 4
2. POM Thomas Mccue	25893	948292	PSA 4
3. POM Jesse Williamson	7611	955667	PSA 4

Officer(s)	Allegation	Investigator Recommendation
A . POM Thomas Mccue	Abuse: Police Officer Thomas Mccue stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Robert Giery	Abuse: Police Officer Robert Giery stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Jesse Williamson	Abuse: Police Officer Jesse Williamson stopped the vehicle in which § 87(2)(b) was an occupant.	C . Exonerated
D . POM Thomas Mccue	Abuse: Police Officer Thomas Mccue searched the vehicle in which § 87(2)(b) was an occupant.	D . Unsubstantiated
E . POM Thomas Mccue	Abuse: Police Officer Thomas Mccue frisked § 87(2)(b)	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 14, 2017, § 87(2)(b) called the IAB Command Center where he filed this complaint. The CCRB received this case from IAB on November 17, 2017.

On November 11, 2017, at approximately 7:23 p.m., in the vicinity of East 5th Street and Avenue C in Manhattan, Police Officer Thomas Mccue, Police Officer Robert Giery, and Police Officer Jesse Williamson, all of PSA 4, stopped § 87(2)(b)'s vehicle (**Allegations A, B, and C: Abuse of Authority, exonerated**). After his vehicle was stopped, PO Mccue allegedly ordered § 87(2)(b) to exit his vehicle and move to the rear. § 87(2)(b) complied and PO Mccue allegedly searched the vehicle (**Allegation D: Abuse of Authority, unsubstantiated**). Upon completing the search of the vehicle, PO Mccue approached the rear of the vehicle and allegedly frisked § 87(2)(b) (**Allegation E: Abuse of Authority, unsubstantiated**). No weapons, contraband, or paraphernalia were recovered from § 87(2)(b)'s person or his vehicle. § 87(2)(b) was not arrested nor issued any summons as a result of this incident.

No video footage exists for this incident.

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Thomas Mccue stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B—Abuse of Authority: Police Officer Robert Giery stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation C—Abuse of Authority: Police Officer Jesse Williamson stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that on November 11, 2017, at approximately 7:23 p.m., he was driving around the general vicinity of the lower eastside of Manhattan, looking for a place to park after visiting his father, § 87(2)(b) who was incarcerated on Rikers Island (Board Review 01). § 87(2)(b) drove his vehicle, a 2001, black 325i BMW sedan, which belonged to his father before he was incarcerated, southbound on Avenue C and made a right turn down East 5th Street. However, after making the turn, § 87(2)(b) realized that East 5th Street becomes a dead end. Upon reaching the end of the street, § 87(2)(b) turned his vehicle around and drove back toward Avenue C. Before § 87(2)(b) could reach the intersection of Avenue C and East 5th Street, a black, unmarked NYPD Ford Fusion or Impala, drove toward § 87(2)(b) turned on its emergency lights, and stopped § 87(2)(b)'s vehicle in the middle of East 5th Street.

PO Mccue, PO Giery, and PO Williamson exited their black, unmarked RMP, and PO Mccue approached § 87(2)(b)'s vehicle while the other two officers remained next to the RMP. PO Mccue told § 87(2)(b) that the officers had stopped him because he had a “foreign plate decal” partially covering his New York State license plate. § 87(2)(b) provided the investigation with a photograph he had taken of the foreign plate decal in question, (Board Review 02), which upon inspection, and after confirming with § 87(2)(b) is in fact a German license plate.

§ 87(2)(b) described PO Mccue as a white male in his 30's, who stood approximately 5'11" tall, had a heavy set build, had brown hair and a beard, and was dressed in plainclothes. § 87(2)(b) described PO Giery as a white male in his 20's, who stood approximately 5'9" tall, had an average build, had brown hair, and was dressed in plainclothes. § 87(2)(b) described PO Williamson as a white male, who stood approximately 5'8" tall, had a stocky build, had reddish or blondish hair and a short beard, and was dressed in plainclothes.

§ 87(2)(b) stated that PO Mccue asked him what he was he doing in the area, and he replied that he was looking for parking. PO Mccue asked if there were any drugs in his vehicle, and § 87(2)(b) replied no. PO Mccue asked if he smoked marijuana and § 87(2)(b) replied, “Occasionally.” PO Mccue ordered § 87(2)(b) to exit his vehicle and stand near the trunk with the other two officers and § 87(2)(b) complied. § 87(2)(b) stated that, while standing by the trunk of his vehicle, PO Giery ordered him to produce his identification and § 87(2)(b) complied. While examining § 87(2)(b) s identification, PO Giery stated, § 87(2)(b) “Why does that name sound so familiar?” After a few moments, PO Giery realized and stated that he and PO Mccue had previously arrested § 87(2)(b) which § 87(2)(b) acknowledged.

Arrest report #§ 87(2)(b) generated on December 9, 2016, regarding the arrest of § 87(2)(b) lists PO Giery as the reporting and arresting officer (Board Review 03). Arrest report #§ 87(2)(b) generated on December 30, 2016, regarding the arrest of § 87(2)(b) lists PO Giery as the reporting and arresting officer (Board Review 04).

PO Giery, a § 87(2)(b) white male, who stands 5’9” tall, weighs 160 pounds, has brown hair, and was dressed in plainclothes on the date of the incident, stated that he did not have any independent recollection of this incident, and did not recall stopping § 87(2)(b) s vehicle on November 11, 2017 (Board Review 05). After being shown a photograph of § 87(2)(b) PO Giery stated that he did not recognize § 87(2)(b) and did not recall interacting with him on the date of the incident or any date prior. A photograph of the foreign plate decal was shown to PO Giery, however, he did not recognize it or aid in his recollection of the incident.

After being presented with Arrest report #§ 87(2)(b) PO Giery confirmed that he had arrested § 87(2)(b) PO Giery did not recall if he was partnered with PO Mccue or PO Williamson at the time of § 87(2)(b) s arrest, and did not know how long he has been partnered with PO Mccue and PO Williamson.

PO Williamson, a § 87(2)(b) white male, who stands 5’8” tall, weighs 195 pounds, has red hair and a beard, was dressed in plainclothes, and assigned a black, unmarked Chevrolet Impala with his partners on the date of the incident, stated that he did not have any independent recollection of this incident, and did not recall stopping § 87(2)(b) s vehicle on November 11, 2017 (Board Review 07). After being shown a photograph of § 87(2)(b) and a photograph of the foreign license plate, PO Williamson denied recognizing or interacting with § 87(2)(b) on the date of the incident or any other date, and did not recognize the foreign license plate. Although he noted that many motorists drive around with multiple license plates and that it would not necessarily draw his attention, PO Williamson did acknowledge that the incident location is an area that he and his partners regularly patrol, and acknowledged that he and his partners regularly conduct vehicle stops.

On February 1, 2018, after PO Giery and PO Williamson had been interviewed by the CCRB, Sgt. Garcia of IAB conducted a Warrant Check Audit, which revealed that on November 12, 2017, PO Giery of PSA 4, conducted three warrant checks at 3:33 a.m., 3:35 a.m., and 3:36 a.m., respectively, for an individual named § 87(2)(b) (Board Review 08).

PO Mccue, a § 87(2)(b) white male, who stands 5’10” tall, weighs 300 pounds, has brown hair and a beard, and was dressed in plainclothes on the date of the incident, stated that he did not have any independent recollection of this incident, and did not recall stopping § 87(2)(b) s vehicle on November 11, 2017 (Board Review 06). After being shown a photograph of § 87(2)(b) and a photograph of the foreign plate decal, PO Mccue denied recognizing or interacting with § 87(2)(b) on the date of the incident, and did not recognize the foreign

license plate, although he added that a foreign license plate covering a NYS license plate is a violation which a motorist could be issued a summons for.

During his CCRB interview, PO Mccue was presented with the WCA that shows PO Giery having run a warrant check for the name § 87(2)(b) three times approximately 30 minutes before the end of their tour. When asked if the document refreshed his memory of the incident, or if he assisted or witnessed PO Giery conduct the warrant checks, PO Mccue stated that he did not recall “any of that, at all.” Although PO Mccue acknowledged that the WCA contained PO Giery’s first name, last name, and command, PO Mccue stated he could not provide any further details regarding the document as he had not seen a WCA previously. When asked whether PO Giery did in fact conduct a warrant check for § 87(2)(b) PO Mccue stated, “that’s his name, but there’s nothing indicating his tax number, if it was actually him, if it was someone else, what that paperwork is, I don’t know.”

During his second CCRB interview, PO Giery was presented with the WCA (Board Review 08). PO Giery acknowledged that the WCA contained his name and command, but stated that he did not recall anything in regards to the incident, and did not recall conducting a warrant check for § 87(2)(b) (Board Review 09). PO Giery stated that he occasionally conducts warrant checks for individuals he has arrested. However, when asked to specify which circumstances would lead him to conduct a warrant check on an individual, PO Giery replied, “Just random.” When asked for the purpose of conducting a warrant check individual that has been arrested, PO Giery replied, “Just random...I do random checks.”

Neither PO Mccue, PO Giery, nor PO Williamson made a memo book entry regarding this incident (Board Review 11-13). All three officers’ memo books contain entries approximately one hour before the time of the incident, and approximately one hour after the incident. At 6:30 p.m., all three officers wrote that they conducted a directed patrol of the NYCHA Campos Houses, which is located at East 12th Street and Avenue C, approximately seven city blocks from the incident location. At 8:30 p.m., all three officers wrote the NYPD radio code “10-91,” which indicates that a non-crime has been corrected. However, when asked what non-crime was corrected that prompted creating the entry, PO Mccue argued that a 10-91 does not mean a non-crime was corrected, but rather meant that he did not observe anything at that time during patrol (Board Review 06), PO Giery did not recall what had prompted the entry (Board Review 05), and PO Williamson said that he and his partners drove around and when they did not encounter any crimes they marked their memo books accordingly (Board Review 07). All three officers listed their end of tour as 4:05 a.m. on November 12, 2017.

No person shall operate, drive, or park a motor vehicle unless such vehicle has a distinctive number assigned to it by the commissioner and a set of number plates issued by the commissioner...[T]he view of such number plates shall not be obstructed by any part of the vehicle or by anything carried thereon...no vehicle shall display the number plates of more than one state at a time...nor shall any plate be used other than those issued by the commissioner. Vehicle Traffic Law, Article 14, Section 402 (Board Review 10).

It is undisputed that PO Giery, PO Mccue, and PO Williamson were on duty during the incident. It is undisputed that all three officers were within the immediate vicinity of the incident location at the approximate time of the incident. It is undisputed that PO Giery, PO Mccue, and PO Williamson matched the physical descriptions of the subject officers provided by § 87(2)(b). It is undisputed that PO Giery arrested § 87(2)(b) s father, § 87(2)(b) on December 9, 2016 and December 30, 2016, and that no other officer has arrested § 87(2)(b) since. It is undisputed that the IAB Warrant Check Audit reported that PO Giery

§ 87(2)(g)

Allegation D—Abuse of Authority: Police Officer Thomas Mccue searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that after PO Mccue ordered him to exit his vehicle and stand near the trunk with PO Giery and PO Williamson, PO Mccue searched his vehicle (Board Review 01). § 87(2)(b) stated that although he only looked back at PO Mccue once, wherein he saw him in the driver's seat of his vehicle, § 87(2)(b) heard the doors of his vehicle open and close multiple times, and later when he re-entered his vehicle, he described the state of the interior as a mess, which lead § 87(2)(b) to believe that PO Mccue searched the entire vehicle.

PO Mccue ordered § 87(2)(b) to re-enter his vehicle and he complied. § 87(2)(b) stated that once he was seated in his vehicle, PO Mccue allegedly reached in through the driver side window, grabbed § 87(2)(b)'s cell phone, and placed it on the roof of the vehicle. PO Mccue then allegedly walked to the rear of § 87(2)(b)'s vehicle, opened the trunk which was unlocked, and searched the trunk. Approximately three to four minutes later, PO Mccue slammed the trunk shut and approached the driver side window. PO Mccue returned § 87(2)(b)'s cell phone to him, told § 87(2)(b) that he "got lucky," and told him to leave. No weapons, contraband, or paraphernalia were recovered from § 87(2)(b)'s person or his vehicle.

CCRB CTS – Confidential

§ 87(2)(g)

It is therefore recommended that **Allegation D and E** be **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first and only CCRB complaint to which § 87(2)(b) has been a party.
- PO Giery, a five-year-member-of-service, has two concurrent CCRB complaints filed against him, with a total of five allegations, which are pending investigation. In CCRB #201709676, allegations of § 87(2)(g) a refusal to provide his name or shield number have been filed against PO Giery. In CCRB #201801969, a stop allegation has been filed against PO Giery (see Officer History).
- PO Williamson, a four-year-member-of-service, has had one prior CCRB complaint filed against him, with a total of one allegation, which was not substantiated. PO Williamson has one concurrent CCRB complaint filed against him, with a total of two allegations, which are pending investigation. § 87(2)(g)

§ 87(2)(g)

- PO Mccue, an eight-year-member-of-service, has had two prior CCRB complaints filed against him, with a total of eight allegations, two of which were substantiated. In CCRB #201311395, threat of arrest and refusal to provide his name or shield number allegations were substantiated by the Board, which recommended charges. PO Mccue received instructions from the NYPD. PO Mccue has two concurrent CCRB complaints filed against him, with a total of four allegations, which are pending investigation. § 87(2)(g). In CCRB #201803393, a stop allegation has been filed against PO Mccue (see Officer History).

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On § 87(2)(b), § 87(2)(b) filed a Notice of Claim with the City of New York claiming false arrest; false imprisonment; negligent training, supervision, hiring and retention; unlawful search, seizure, and entry; loss of liberty; loss of civil rights and constitutional rights pursuant to 42 USC Sec. 1983; intentional infliction of emotional distress; negligence; assault; and battery and seeking \$1,000,000 as redress (Board Review 15). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 8

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date